TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JUNE 26, 2023
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall, Julian Hopkins.
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-16-23, 1078 Johnnie Dodds Boulevard, TMS #535- 00-00-141. Request for relief from the strict application of §156.140(D)(5) to allow improvements upon the existing nonconforming use; where the value of said improvements exceeds 50% of the property's assessed value.**

Mr. Swalhah reviewed staff comments with the Board.

- Ms. Karen Floyd, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that there are extraordinary and exceptional conditions as zoning is different from surrounding property and improvements are needed; denial would impede their business and would cause a safety hazard; and there is no detriment to surrounding property. Mr. Butner seconded the motion. All in favor.*

2. Case V-19-23, 982 Cliffwood, TMS# 517-03-00-081. Request for relief from the strict application of §156.303(Table) to allow a 2-foot 6-inch encroachment into the rear setback. The ordinance requires a 30-foot setback along the rear property line for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Julie O'Connor reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that there are no extraordinary or exceptional conditions; denial would not prohibit use of the property; it would not be a detriment to the neighborhood; therefore, all criteria have not been met and there is no hardship. Ms. Stevens seconded the motion. Motion passed on a 6 to 1 vote with Mr. Butner, Mr. Barrow, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Hopkins opposed.*

3. Case V-20-23, 1231 Wappetaw Place, TMS #559-05-00-007. Request for relief from the strict application of §156.303(Table) to allow a 5-foot 6-inch encroachment into the rear setback. The ordinance requires a 25-foot setback along the property line for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Leonard Weiss, III, and Ms. Catherine Weiss reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for denial based on the findings that it does not meet the hardship criteria in that denial of the request would not unreasonably restrict the property. Mr. Hopkins seconded the motion. Motion passed on a 5 to 2 vote with Mr. Barrow, Mr. Hopkins, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Butner and Mr. Branch opposed.*

4. **Case V-21-23, 754 Atlantic Street, TMS #532- 06-00-097. Request for relief from the strict application of §156.111(B)(4) to allow the existence of an Accessory Dwelling Unit with a building footprint of 895 square feet. The ordinance limits the building footprint of Accessory Dwelling Units to 850 square feet.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Alex Crosby and Mr. David Crosby reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Butner moved for approval based on the findings that the request meets the hardship criteria as a laundry room and water heater are need; would unreasonably restricts property; and there is no detriment to adjacent property. Mr. Hopkins seconded the motion. All in favor.*

5. **Case V-22-23, 517 Royall Avenue, TMS #532-05-00-070. Request for relief from the strict application of 156.313(F)(3)(c) to allow a building**

area ratio of 54.82% of the lot's area. The ordinance limits the building area ratio to 50% of a lot's area.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Tyler Smyth, architect, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for approval for the front porch based on the findings that it brings the home closer to compliance of the required porch percentage by the Historic District Preservation Commission (HDPC); it is the only home without a front porch; there is a hardship as it is not in compliance with HDPDC guidelines; on the condition of complete review and approval by HDPC. Mr. Branch seconded the motion. All in favor.*

- Mr. Branch moved for approval of the screened rear porch based on the findings that the lot has an unusual configuration; *that it brings the home closer to compliance of the required porch percentage by the Historic District Preservation Commission (HDPC); there is a hardship as it is not in compliance with HDPDC guidelines; and utilization is restricted because of not having the porch. Mr. Butner seconded the motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Branch, Mr. Hopkins, and Ms. Stevens in favor; Mr. Barrow, Ms. Hall and Mr. Wood opposed.*

6. **Case V-23-23, 121 Simmons Street, TMS #517-16-00-016. Request for relief from the strict application 156.225(C) to allow the removal of a 25 inch Live Oak tree.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Todd Hicks, builder, and Mr. Marshall Bordeaux, arborist, reviewed the request with the Board.

- There being no comments, Mr. Wood continued to Board questions.

▶ *Mr. Butner moved for approval to allow additional survey information to be submitted. Ms. Stevens seconded the motion. All in favor.*

Mr. Hicks provided the additional survey for the Board to review.

▶ Mr. Wood closed public comment.

▶ *Ms. Stevens moved for approval based on the findings this lot is not usable with the tree on the lot and there are other trees on the lot, including preserving two significant trees. Mr. Butner seconded the motion. Motion passed on a 5 to 2 vote with Mr. Butner, Mr. Branch, Mr. Hopkins, Ms. Stevens, and Ms. Hall in favor; Mr. Barrow and Mr. Wood opposed.*

The Board convened for a short break at 7:40 pm and reconvened at 7:49 pm.

7. **Case S-02-23, 1120 Rifle Range Road, TMS #532-08-00-044. Request for a special exception in accordance with §156.326(C)(3)(g) to allow improvements upon a school building in the R-1 zoning district.**

▶ Mr. Swalhah reviewed staff comments with the Board.

▶ Mr. Robert Almirall, Civil Engineer, and Mr. Geoffrey Clever reviewed the request with the Board.

▶ There being no comments, Mr. Wood moved to Board questions.

▶ Mr. Wood closed public comment.

▶ *Mr. Branch moved for approval based on the findings that all requirements are met for the special exception to be granted including site work, driveways, parking, landscaping, etc., and there is a need for a gymnasium for the school. Ms. Stevens seconded the motion. All in favor.*

8. **Case V-24-23, 710 Simmons Street, TMS #532-06-00-169. Request for relief from the strict application of §156.111(A)(1) to allow a 3-foot 6-inch encroachment into the side setback and a 3-foot 4-inch encroachment into the rear setback. The ordinance requires a 6-foot**

setback for accessory structures along the side and rear property lines for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Greg Ruminski and Ms. Courtney Ruminski reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that the structure was built without a permit; denial would prohibit use of structure as built; no detriment as there are letters of support from neighborhood. Mr. Butner seconded the motion. Motion failed on a 2 to 5 vote with Mr. Butner and Mr. Branch in favor; Mr. Barrow, Mr. Hopkins, Ms. Stevens, Ms. Hall, and Mr. Wood opposed.*

- *Mr. Butner moved for denial of the request. Ms. Stevens seconded the motion. Motion passed on a 5 to 2 vote with Mr. Barrow, Mr. Hopkins, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Butner and Mr. Branch opposed.*

9. Case V-25-23, 1434 Ira Road, TMS #559-13-00-004. Request for relief from the strict application of §156.201(D)(Table) to encroach 7.5 feet into the Type A buffer to provide space for parking. The ordinance requires a 10-foot Type A buffer along the side property line.

- Ms. Stevens recused herself due to a conflict of interest.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. John Dangerfield, Engineer, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

Mr. Branch moved for approval based on the findings that the request meets the criteria based on the unique access and view of the property; will achieve plantings required for buffer and screening; does not apply to other properties as proposed use is unique and additional parking is needed; if not approved it would mean prohibit use of the proposed use by half; improving property by addition of buffers. Mr. Hopkins seconded the motion. All in favor with Ms. Stevens abstaining.

10. Case V-26-23, 704 Remley Lane, TMS #514-05-00-058. Request for relief from §156.201(I)(2) to allow an encroachment within the critical line buffer.

Mr. Swalhah reviewed staff comments with the Board.

Mr. Wood administered the oath to Mr. Timothy Winter.

Mr. Timothy Winter, owner, reviewed the request with the Board.

Ms. Devetta Richardson, 228 6th Ave, expressed concern that the proposed development would exacerbate the flooding issue in the area. She stated that she is opposed to the request. She suggested that the property was configured to allow a single-family residence on the high ground, but the lot has since been subdivided.

Ms. Jacquelyn Gore, 308 6th Ave, expressed concern with the variance being approved, as the development will exacerbate the flooding. She suggested that the proposed development would negatively impact the neighborhood.

There being no further comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

Mr. Barrow moved for denial based on the findings that the criteria has not been met as there are no extraordinary conditions; this is located in settlement community and other properties have similar conditions; if denied property will not be prohibited as it could be developed with critical line buffer in place; and

flooding would be a detriment to the neighborhood. Mr. Hopkins seconded the motion. All in favor.

11. Case V-27-23, 1242 White Flat Road, TMS #560-02-00-005/047. Request for relief from §156.201(D)(Table) to encroach within 6 of the buffers on the parcels to provide space for the existing parking and building.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jeff Ross, owner, Mr. Jake Serrano, Civil Engineer, reviewed the request with the Board.

- *Mr. Butner moved for approval of additional survey information to be submitted. Mr. Hopkins seconded the motion. All in favor.*

Mr. Ross provided the additional survey for the Board to review.

- *Mr. Butner moved to allow an additional two minutes for the applicant's presentation. Ms. Stevens seconded the motion. All in favor.*

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Wood moved for denial based on the findings that the criteria has not been met and denial would not restrict use of the property. Mr. Barrow seconded the motion. Motion passed on a 6 to 1 vote with Mr. Butner, Mr. Barrow, Mr. Branch, Mr. Hopkins, Ms. Hall, and Mr. Wood in favor; Ms. Stevens opposed.*

12. Case V-28-23, 1314 Erckmann Drive, TMS #532-07-00-064. Request for relief from the strict application of §156.225(C) and section 156.303(Table) to allow the removal of a 27-inch and 30-inch laurel oaks and allow a 3-foot 8 ¾-inch encroachment into the side setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Dudley Colhoun, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that the trees are in poor health and are life and safety hazards for both properties. Mr. Butner seconded the motion. Motion passed on a 6 to 1 vote with Mr. Butner, Mr. Branch, Mr. Hopkins, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed.*

- *Mr. Butner moved for approval for the encroachment into the side setback based on the findings that there are extraordinary conditions because of the large powerline that would pose an obstacle for the addition; exceptional conditions as the property is on a corner lot; if denied, the use would be restricted due to the property being a corner lot, placement of the powerline and possible detriment to trees; no detriment to the neighborhood as it would be an improvement. Mr. Branch seconded the motion. Motion passed on a 6 to 1 vote with Mr. Butner, Mr. Barrow, Mr. Branch, Mr. Hopkins, Ms. Stevens, and Ms. Hall in favor; Mr. Wood opposed.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 9:32 pm.

Submitted by,
L. Lynes
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